Florida State University Department of Philosophy

Anarchy, State, and Utopia by Robert Nozick
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REVIEW

Robert Nozick, *Anarchy, State, and Utopia*
Basic Books, 1974. pp. xvi, 367. $12.95.

Anarchy, State, and Utopia is divided into three sections, with each section corresponding to a theme referred to in the title. In part one, titled "State-of-Nature Theory, or How to Back into a State without Really Trying," Nozick examines the anarchist view that the state is intrinsically immoral and develops what is surely the most detailed and convincing argument (or set of arguments) ever formulated to justify that minimal "night watchman" state of traditional liberal political theory. In particular, Nozick argues "that a state would arise from anarchy (as represented by Locke's state of nature) even though no one intended this or tried to bring it about, by a process which need not violate anyone's rights."[1]

In part two, "Beyond the Minimal State?," he argues that a more extensive state cannot be justified. Specifically, Nozick argues that the state (except in very special circumstances, to be discussed below) is not justified in redistributing the wealth of its citizens nor in paternalistic legislation. The implications of these claims are enormous. For example, welfare, education, and a host of other activities could not be conducted by the state but only by voluntary associations. Progressive income tax would be unjustified. Mandatory seatbelt legislation and restrictions on advertising cigarettes would have to go. In the course of defending his view of the legitimate activities of the state, Nozick develops a theory of justice (called "entitlement theory") which he puts forward in opposition to the views of Rawls and others.

Finally, in part three, "Utopia," an argument is developed in response to the potential charge that his conception of the mimimal state "may seem pale and unexciting, hardly something to inspire one or to present a goal worth fighting for."[2] There, he argues that no one substantive account of utopia could possibly be adequate for all the different kinds of people in the world. Instead, what Nozick proposes is a "framework for utopia," that is, a situation which combines maximum free-

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dom with the protection and stability needed for a wide variety of utopian experiments. Not surprisingly, the framework or "metautopia" described in part three turns out to be equivalent to the minimal state defended in parts one and two. And so *Anarchy, State, and Utopia* ends with the claim that this minimal state indeed provides an inspiring vision, a vision of voluntary cooperation among free individuals, the absence of coercion, and an opportunity for persons to pursue their own goals limited only by the rights of other equally free beings.

In some ways, of course, what Nozick argues is not new. Thoreau, for example, favored no more than a minimal state (although if he were to return today he would hardly be able to say that he only met the state once a year—in the person of the tax collector). Emerson went so far as to reject even voluntary philanthropy (as did George Ripley in his later years). Locke's notions about rights and freedom bear some similarities to Nozick's. And in recent years several books by noted philosophers have advocated positions which are in some important ways similar to Nozick's. For example, Robert Paul Wolff's *In Defense of Anarchism* argues that *any* state, even a minimal one, would violate the rights (or "moral autonomy") of the individual and Wolff too concludes his work with a section of utopian speculation. John Hospers' *Libertarianism* argues for a position similar in some ways to Nozick's. And, of course, the anarchist and libertarian traditions are in one way not very far from the tradition of utopian socialism, a tradition which also supports minimum coercion and maximum voluntarism.[3] Finally, the recent mood of the country (if I judge it accurately) accepts one aspect of Nozick's position, namely, the rejection of paternalistic legislation. (The decline of the *in loco parentis* doctrine among college administrators is but one highly publicized facet of this trend.)

Even though Nozick's position is not entirely new, there are some strikingly original features in it. Peter Singer made one of these points nicely in his review of *Anarchy, State, and Utopia*:

> Political philosophers have tended to assume without argument that justice demands an extensive redistribution of wealth in the direction of equality; and that it is a legitimate function of the state to bring about this redistribution by

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> coercive means like progressive taxation. These assumptions may be correct; but after *Anarchy, State, and Utopia* they will need to be defended and argued for instead of being taken for granted.[4]

In addition to his challenge to the "received opinion" concerning state redistribution of wealth, another interesting point is the wide variety of specialized disciplines which Nozick demonstrates to be importantly relevant to political philosophy and to ethics. Rawls convinced us that economic theory and psychology were areas we needed to understand and use as moral and political philosophers. Nozick goes even further by incorporating game theory, and the philosophy of biology, among other areas, into his discussion. But more than anything else, it is the freshness and power of Nozick's arguments that make his book so appealing.

One of his examples has been widely cited and may be used to illustrate his theory of justice as "entitlement." Nozick asks us to imagine a society in which wealth is (or "holdings" are) distributed according to some pattern which satisfies a particular theory of justice. For example, the wealth might be distributed equally. Next, suppose that many people in this society want to see Wilt Chamberlain play basketball. Suppose further that Chamberlain negotiates a contract with his team giving him 25¢ from the price of each ticket. If a million people are willing to pay to see him play, Chamberlain ends up with $250,000, and thus upsets whatever pattern was in effect before the season began. Nozick's question then is whether this new distribution of wealth is unjust. By hypothesis the original distribution was just. The million people who paid 25¢ to see Chamberlain play were, by hypothesis, entitled to spend that money on whatever they chose. They could, for example, have spent it on candy or newspapers. The holdings of members of the society not interested in basketball are unchanged. The new arrangement differs from the original just one. But how could such a transfer of wealth give rise to any legitimate claim to a portion of this wealth by a party who had no such legitimate claim to begin with? (Such a party might be the state, for example, or perhaps a group of the poorest members of a society.) Unless there is a persuasive answer to this question, then, no one (including the state) is justified in taking

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away any of Chamberlain's $250,000 in the name of justice. He can neither be prohibited from earning the money nor can any of it be taken away be progressive taxation.

Nozick acknowledges that many of his readers will reject his views. Indeed, he himself at first refused to accept the implications of some of the arguments he presents.[5] But let us consider just what it is that he had (and his readers may be presumed to have) so much difficulty accepting. Is it his derivation of a minimal *state* from the condition of anarchy? Philosophical anarchists may not be persuaded by part one of *Anarchy, State, and Utopia*. Most of us, however, should have less difficulty accepting the arguments and conclusions in that part of the book. The rub for most of us (as, I suspect, for "the early Nozick") comes with the arguments which claim to show that only the *minimal* state can be justified. But even here not all of his argument is likely to seem equally unpalatable. Many of us (including presumably "the early Nozick") have long opposed "paternalistic legislation" of the sort that Nozick's view also rules out. The real point of controversy, I think, comes in Nozick's limitation on the redistributive activities of the state. Surely, we may feel, some type of redistribution of "holdings" by the state may sometimes be justified. If not by a full-scale "welfare state," then at least through some mild form of progressive taxation. This is the issue on which I shall focus most of my attention.

What the Wilt Chamberlain example shows, according to Nozick, is that the existence of voluntary choice in any society will upset any end-state or patterned system of justice. The consequence is that to maintain such a system, either voluntary choice must be limited (or eliminated) or there must be frequent interference in the lives of those persons receiving extra resources. (This *is*, of course, the status quo in our society.) But Nozick holds this to be unjustified. "Taxation of earnings from labor," he writes, "is on a par with forced labor."[6] The only way to avoid this would be to "forbid capitalist acts between consenting adults."[7]

The difficulties I find with Nozick's theory center around two points: the implicit theory of rights which he presupposes and the relation of his position to certain empirical claims about individual and group behavior. I shall argue that he needs to pay much greater attention to both history and psy-

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chology to supplement his stress on economics and mathematics.

Many different points might be stressed concerning Nozick's theory of rights. The first sentence of the book is: "Individuals have rights, and there are things no person or group may do to them (without violating their rights)."[8] The book simply starts from the assumption of these individual rights. Although such rights are frequently referred to, this part of the theory is neither defended nor developed in any detail. Nozick knows and admits this,[9] however, and suggests that he will write on this topic in the future. The point is that this relatively unexamined theory of rights is made to bear a great deal of weight in his position. In particular, the possibility that the rights of an individual might be overridden in certain circumstances is not adequately considered by Nozick. It is true, as I mentioned above, that Nozick promises to consider such matters in more detail in some future work. But a doctrine of nonabsolute rights, for example, would undercut his major line of argument about the limits of states.[10]

In Nozick's view of rights it is assumed that individuals have a right to certain things (for example, property) but not to other things (for instance, a guaranteed annual income, a livable environment, etc.). In addition to defending his notion of rights in general, considering the conflict of rights, and exploring the possibility of certain rights being overridden, Nozick needs to say far more about exactly what rights people have. While I cannot elaborate or defend a full-scale theory here, I will suggest a situation involving "rights" which may cast some doubt on Nozick's "entitlement theory."

Suppose that I have worked for what I have, have not exploited anyone to get it, came by my initial holdings fairly, in short, that I satisfied the conditions for just holdings laid down by Nozick's entitlement theory. Now suppose that I am suddenly confronted by another human being who through no fault of his own is starving. Nozick's position would be that since I am "entitled" to what I have, this other person has no "right" to any of it. In particular, no government can legitimately coerce me into giving part of what I have to save this person's life. (Nozick would, it is true, favor voluntary charity, but not governmental coercion.) But it seems plausible to me to say that (provided that I have enough for both of us) the

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starving newcomer does in fact have a right to part of what I have, whether I happen to recognize that right or not. Exactly why we should approve of voluntary charity at all is not explored by Nozick. His main concern here is to criticize the use of governmental coercion for charitable ends. But if Nozick were to admit that the starving person in my example above has any sort of right to a share of my holdings, there would be the start of a case for the state to be involved in securing that right.

Much of the standard material of contemporary political philosophy is relevant here. For example, perhaps justice would require a "utility floor" under everyone before we could apply Nozick's entitlement theory.[11] If a "guaranteed annual income" plan would do this, we should at least consider whether the government should be the agent of such a program.

One line of argument runs as follows: If we recognize a right to life, we presumably must also recognize a right (with the possibility of some limits to this right, of course) to whatever is necessary to exercise that right. It seems to me quite clear that at least a subsistance level of food, shelter, and clothing is necessary for one to exercise his right to live. (Cf. "Bread for all before cake for some.") This kind of insight is recognized in Nozick's examination and guarded endorsement of John Locke's proviso in his theory of acquisition that there be "enough and as good left in common for others." Nozick writes,

> Thus a person may not appropriate the only water hole in a desert and charge what he will. Nor may he charge what he will if he possesses one, and unfortunately it happens that all the water holes in the desert dry up, except for his. This unfortunate circumstance, admittedly no fault of his, brings into operation the Lockean proviso and limits his property rights.[12]

At this point Nozick adds that "The situation would be different if his water hole didn't dry up, due to special precautions he took to prevent this."[13] But even though it is (trivially) true that this situation would be different, do the owner's "special precautions" justify his charging whatever he will? It seems to me that they do not. In certain important ways, are not all of us with wealth in today's world in the position of the owner

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of the necessary water hole? If not, why not? This whole issue needs to be argued in greater detail. I hope Nozick's contribution will stimulate further discussion.[14] In any case, if the notion of individual rights is to bear the weight which Nozick places on it (being, in effect, the foundation of his argument limiting the state to a minimal role), this notion itself requires far more examination than Nozick has yet given it.

Next, I wish to consider some problems with Nozick's approach to history. It is true that the entitlement theory embodies what Nozick labels an *historical* rather than an *end-result* conception of justice. This is one of the ways in which Nozick's position differs from utilitarianism. In Nozick's view, whether a distribution is just depends (in the typical case) on the details of how that distribution came about. The justice of a particular distribution would be decided by an end-state theory simply on the basis of the structure of the distribution in a current time-slice.[15]

I agree with Nozick that a historical principle of justice is in certain ways superior to an end-state principle. I have two objections to the way in which he develops his "historical" principle of justice, however.

In the first place, as Nozick himself acknowledges,[16] the entitlement theory must contain a principle of the just acquisition of holdings and this principle has not yet been developed in sufficient detail. All he has given is a brief consideration of Locke's theory of appropriation and the formulation of the proviso that "A process normally giving rise to a permanent bequeathable property right in a previously unowned thing will not do so if the position of others no longer at liberty to use the thing is thereby worsened."[17] But Nozick's treatment of this Lockean proviso, and hence of the theory of just acquisition, simply leaves too many questions unanswered. For example, given a strict interpretation of "worsened," could it be that there are no permanent property rights after all?

My second point is that for all its verbal commitment to the historical component of justice, there is a major sense in which Nozick's theory is ahistorical after all. The sort of thing I have in mind here is connected with a comment of Nietzsche's:

> Philosophers think that they show their *respect* for a subject when they de-historicize it, *sub specie aeterni*—when they

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> turn it into a mummy. All that philosophers have handled for thousands of years have been concept-mummies; nothing real escaped their grasp alive. When these honorable idolators of concepts worship something, they kill it and stuff it; they threaten the life of everything they worship.[18]

Do these remarks apply to Nozick's theory? Part of the answer has been sketched above: Nozick simply doesn't say enough about the issue of justice in the original (that is, historical) acquisition of property. But more than this, Nozick rather glibly, albeit impressively, shows how the minimal state and only the minimal state could develop without violating anyone's rights. He concludes then that the state cannot legitimately engage in redistributing holdings that individuals are already entitled to, even in the interest of "justice" and "equality." He has nothing against voluntary, private charity and philanthropy, but it cannot be justifiably practiced by the state. My point is that we have tried making charity voluntary in various (most?) historical periods and that our experience needs to be taken into account. The historian of ethics will recall, for example, how often the example of "giving alms to a beggar" comes up for discussion in the works of ethical theorists prior to this century. The rise of the "welfare state" in the modern world has essentially done away with the issue of beggary, in most of the Western world at least. But what if the state were to become "minimal"?

Two questions need to be carefully distinguished here. One of these is: What, in fact, would happen if a contemporary state were to give up its redistribution function and all charity were to be voluntary? The second question is: What would be the relevance of such data even if we were to possess it? Unfortunately Nozick gives little attention to either of these questions. One reason for his lack of attention to the first, no doubt, is his heavy reliance on the techniques of analytic philosophy, economic theory, and the logical and mathematical models associated with each. There is a serious problem here, however. In the absence of redistribution activities on the part of the state, how much would in fact be done by voluntary means? And, if significantly less were done than previously, what would be the response of those who had previously benefited from such redistribution? While I do not know the answer to these questions, I suspect that voluntary redistribu-

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tion would be very limited and that the result would be riots, demonstration, and the like. The empirical aspects of these questions are very complex. One factor would be the extent to which previously formed expectations would be frustrated. (Research and discussions by political scientists on "revolutions of rising expectations" and on the economic aspects of political alienation would be relevant here.) A related, though slightly different factor, concerns the extent to which significant numbers of the poorest citizens of Nozick's minimal state would organize for collective action to protest their lot. (The histories of the labor movement and the civil rights movement could be instructive here.)[19]

Of course, even if it could be shown that the empirical consequences of having a mimimal state in Nozick's sense would be those suggested above, the relevance of all this to political philosophy (and to ethics) would need to be established. Nozick's strong position on the issue of the absoluteness of individual rights suggests to me that he would deny the relevance of such empirical considerations, rather like a philosopher of the *fiat justitia ruat caelum* school. Most likely, he would see such consequences simply as a type of coercion, a topic which he has dealt with at some length elsewhere.[20] It seems to me, however, that close attention to potential consequences of this sort is of great importance if we are to avoid dealing simply with "concept-mummies."

Looking back at *Anarchy, State, and Utopia* as a whole, a phrase which comes to mind is one used by A. J. Ayer to describe his *Language, Truth and Logic* in the introduction written ten years after it was first published: "in every sense a young man's book." That is, it defends a rather extreme position with brilliance, enthusiasm and freshness. Like *Language, Truth and Logic,* Nozick's book will probably have a major influence on its field. Perhaps (though who can say?) Nozick himself will someday write a preface to a later edition in which he reverses himself on some important points.

NOTES

1. Robert Nozick, *Anarchy, State, and Utopia* (New York: Basic Books, 1974), xi.
2. Ibid., xii.
3. See, for example, Martin Buber, *Paths in Utopia*, trans. by R.F.C. Hull (New York: The Macmillan Company, 1949).

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4. Peter Singer, "The Right to Be Rich or Poor," *The New York Review* (March 6, 1975): 19–24.
5. In addition to Nozick's remarks on this point in *Anarchy, State, and Utopia* (ix-x), he goes into greater detail in an interview in *Forbes* (March 15, 1975): 22–24.
6. Nozick, *Anarchy*, 169.
7. Ibid., 163. See *Forbes*, 24, for more discussion of this issue.
8. Nozick, *Anarchy*, ix.
9. Ibid., cf. xiv.
10. Of the many philosophical examination of the issue of absolute vs. nonabsolute rights, one of the most convincing is that of Joel Feinberg, *Social Philosophy* (Englewood Cliffs, N.J.: Prentice-Hall, Inc., 1973), 73-75, 79-83, 86-88.
11. See, for example, Nicholas Rescher, *Distributive Justice* (Indianapolis: Bobbs-Merrill, 1966), 28–30.
12. Nozick, *Anarchy*, 180.
13. The owner of this water hole, of course, will tend to see his success as the result of his foresight and "special precautions" even in those (frequent?) cases where it is due simply to luck. This point is similar to one made in an article referred to by Nozick: Karl Deutsch and William Madow, "Notes on the Appearance of Wisdom in Large Bureaucratic Organizations," *Behavioral Science* (January 1961): 72–78.
14. One recent contribution to this debate which makes explicit reference to Nozick is Onora Nell, "Lifeboat Earth," *Philosophy & Public Affairs* 4 (Spring 1975): 273–92.
15. Nozick, *Anarchy*, cf. 153 ff.
16. Ibid., 153.
17. Ibid., 178.
18. Friedrich Nietzsche, *Twilight of the Idols in The Portable Nietzsche*, ed. Walter Kaufmann (New York: The Viking Press, 1954), 479.
19. In addition to attending to the potential behavior of the economically disadvantaged, we must not forget that the economically advantaged also have the potential to protest and demonstrate when they feel unfairly treated.
20. Robert Nozick, "Coercion," *Philosophy, Science, and Method*, ed. Sidney Morgenbesser, Patrick Suppes, and Morton White (New York: St. Martin's Press, 1969), 440–72.

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